



CHAPTER clxxix.

An Act to confirm certain Provisional Orders granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Caerphilly Epsom Rural District (Cheam) Mansfield Woodhouse North Worcestershire (Bromsgrove Urban) and Sutton-in-Ashfield.

A.D. 1904.

[15th August 1904.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the Schedule to this Act :

45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the Schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 8) Act 1904.

Short title...

2. The several Orders as amended and set out in the Schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said Schedule shall from and after the passing of this Act have full validity and effect.

Orders in
Schedule
confirmed.

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A. D. 1904.

For protec-
tion of Wor-
cestershire
County
Council and
Bromsgrove
Urban Dis-
trict Council.

3.—(1) Nothing in the North Worcestershire (Bromsgrove Urban) Electric Lighting Order 1904 confirmed by this Act shall in any way limit or affect the powers of the Worcestershire County Council or of the Bromsgrove Urban District Council to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon either of those councils any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time either of those councils require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such work give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the council concerned necessary to remove temporarily the mains and other electrical appliances belonging to the undertakers from such bridge then the undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between either of those councils and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

SCHEDULE.

A.D. 1904.

LIST OF ORDERS.

1. CAERPHILLY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Caerphilly.
2. EPSOM RURAL DISTRICT (CHEAM).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the County of Surrey Electrical Power Distribution Company Limited.
3. MANSFIELD WOODHOUSE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Mansfield Woodhouse.
4. NORTH WORCESTERSHIRE (BROMSGROVE URBAN).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Shropshire and Worcestershire Electric Power Company.
5. SUTTON-IN-ASHFIELD.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Sutton-in-Ashfield.

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

CAERPHILLY ELECTRIC LIGHTING.

Caerphilly. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Caerphilly in respect of the Urban District of Caerphilly in the County of Glamorgan.

Short title. 1. This Order may be cited as the Caerphilly Electric Lighting Order 1904.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Urban District Council of Caerphilly.

Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break up streets &c. 5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways and tramways which are also mentioned in that schedule.

Compulsory works. 6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum prices. 7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Power to enter into agreements with South Wales Electrical Power Distribution Company. 8. Nothing in the Electric Lighting (Clauses) Act 1899 as incorporated with this Order shall be construed as preventing the Undertakers from entering into or carrying into effect any contract agreement or arrangement which under the South Wales Electrical Power Distribution Company Act 1900 may be entered into and carried into effect by the South Wales Electrical Power Distribution Company and any authorised undertakers.

Commencement of Order. 9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

A.D. 1904.

Caerphilly.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Caerphilly as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority Railways and Tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :—

In the parish of Eglwysilan—

The main road leading from Cardiff to Merthyr through Caerphilly from Thornhill to the boundary of the parish of Eglwysilan at Llanbradach the main road leading from Bedwas to Caerphilly from Porset Brook to Piccadilly Square Caerphilly the main road from Piccadilly Square Caerphilly to Nantgarw the main road leading from Cardiff to Merthyr from the Eglwysilan parish boundary at Tongwynlais to the Eglwysilan parish boundary between Nantgarw and Upper Boat.

In Caerphilly—

Pontygwindy Road Bedwas Road Rhos Row Nantgarw Road Court House Street St. Fagans Street Stockland Street Pentrebane Street Clive Street Bradford Street Rhymney Terrace Station Terrace Bartlett Street White Street Goodrich Street Clifton Street Windsor Street Station Lane Ludlow Street Cardiff Road and the roadway on the bridge over the Rhymney Railway near the Caerphilly Station the Twyn Bromfield Street Salop Street St. Martin's Road Beddau Road and the roadway on the bridge over the Rhymney Railway (Walnut Tree branch) near Beddau Cottages Cwm Road and Tymelyn Road :

The roadway on the bridge over the Rhymney Railway (Walnut Tree branch) at Penrhos the roadway on the bridge over the authorised Barry Railway at Penrhos the roadway on the bridge over the Alexandra Dock and Railway line at Penrhos the portion of Nantgarw Road on the bridge over the authorised Barry Railway line (Brecon and Merthyr branch) at Penrhos the roadway on the bridge over the authorised Barry Railway (Brecon and Merthyr branch) at Energlyn the roadway on the bridge over the authorised Barry Railway (Brecon and Merthyr branch) at or near Pwllypant.

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

Caerphilly.

In Llanbradach—

Joinery Terrace England Road De Winton Terrace Coedybrain Road
Coedybrain Street Stanley Row Stanley Terrace.

At Aber—

Brook Street Cackout Street Tridwr Road Ilan Road William Street
Cross Street Havard Road Francis Road Graig Street the roadway
on the bridge over the Rhymney Railway (Aber branch) at
Penyrheol the portion of the road leading from Aber to Whitecross
(sometimes called Coedcae Picca Road) on the bridge over the
Rhymney Railway (Aber branch) at Aber Fawr.

At Senghenydd—

Commercial Street Windsor Place High Street road leading from
High Street to Board Schools Stanley Street Cross Street Station
Road Kingsley Place Station Terrace Grove Terrace Parc Terrace
the road leading from the Universal Hotel to the Railway Station
the road leading from Station Road to Station Terrace the roadway
on the bridge over the Rhymney Railway (Aber branch) from
Station Road to Station Terrace the approach to Universal Colliery
from Commercial Street Coronation Terrace Alexandra Terrace.

At Tongwynlais—

Market Street Queen Square Bute Terrace Wyndham Street
Wellington Street and Birch Hill Lane.

In Taffs Well—

Alfreds Terrace the approach to Station from main road Anchor
Street Church Street Castle Street Garth Street Tabor Street
Moy Road the approach to the Board Schools from the main road
the roadway on the bridge over the Barry Railway (Brecon and
Merthyr branch) near Tyrhiw the roadway on the bridge over the
Glamorganshire Canal and the Taff Vale Railway at the Ynys
Bridge the roadway on the bridge over the Glamorganshire Canal
and Taff Vale Railway at Walnut Tree Bridge.

In Glanllyn—

Riverside Place Cules Terrace and road leading to Cules Terrace
Leyshon Street road over Taff Vale Railway near Board Schools.

At Nantgarw—

Quarry Field Chapel Street Canal Row lane leading from main road
to Canal Row and the roadway on the bridge over the Glamorgan-
shire Canal at Nantgarw.

In the parish of Llanfabon—

Main road leading from Cardiff to Merthyr through Caerphilly from
the parish boundary at Llanbradach to the boundary of the district
near Berthllwyd Nelson.

In Nelson—

Wern Crescent Station Terrace High Street Treharris Road Com-
mercial Street Caerphilly Road Dynevor Terrace Mafon Road the
Square the portion of the road known as Shingrig Road on the

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxix.]
(No. 8) Act, 1904.

bridge over the Joint Great Western Railway and the Rhymney Railway at Shingrig the portion of the road known as Commercial Street on the bridge over Taff Vale Railway Bridge at Nelson the roadway on the bridge over the Rhymney Railway near Pontsaeson Ynysglyn Street Ystradmynach and Edward Street Ystradmynach.

A.D. 1904.
Caerphilly.

In Llanbradach—

Charles Street Wingfield Crescent Wingfield Terrace Glenview Terrace Ffrwd Terrace High Street Lewis Terrace Oak Terrace road leading to National Schools Pencerrig Street Grove Street James Street Tynygraig Street Thomas Street Church Street Church View Morgan Street and Station Street.

(b) RAILWAYS :—

Level crossing of the Rhymney Railway (Walnut Tree branch) at Watford over road known as Beddau Road.

(c) TRAMWAYS :—

In the parish of Eglwysilan—

Tramway crossing Forest Road Taffs Well leading from Isaac Morgan & Co.'s Quarry to the Glamorganshire Canal Tramway crossing Cardiff Road at Taffs Well leading from the Castell Coch Quarries to the Glamorganshire Canal.

In the parish of Llanfabon—

Tramway at Nelson leading from the Gilfach Main Quarries to Llancaiach Railway Station crossing Shingrig Road Nelson.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

In the parish of Eglwysilan—

Castle Street Caerphilly the Twyn Caerphilly Cardiff Road Caerphilly Commercial Street Senghenydd Thomas Street Aber High Street Aber and De Winton Terrace Llanbradach.

In the Parish of Llanfabon—

High Street Oak Terrace and Lewis Terrace Llanbradach.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this Schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

SECTION 1.

Guernsey.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

EPSOM RURAL DISTRICT ELECTRIC LIGHTING.

Epsom.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the County of Surrey Electrical Power Distribution Company Limited in respect of the parish of Cheam in the Rural District of Epsom in the County of Surrey.

Short title.

1. This Order may be cited as the Epsom Rural District (Cheam) Electric Lighting Order 1904.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the County of Surrey Electrical Power Distribution Company Limited being a company registered under the Companies Acts 1862 to 1900 with limited liability whose registered offices are situated at Donington House Norfolk Street Strand in the city of Westminster.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break
up streets.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxix.]
(No. 8) Act, 1904.

6.—(1) The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the first part of the Third Schedule to this Order. A.D. 1904.
Epsom.
Compulsory
works.

(2) In addition to the mains hereinbefore specified the Undertakers shall lay down suitable and sufficient distributing mains for the purposes of general supply throughout the street mentioned in the second part of the Third Schedule to this Order upon being required so to do by notice in writing served upon them by the local authority at any time after the expiration of two years after the commencement of this Order and shall thereafter maintain those mains.

7.—(1) The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum
prices.

(2) Subsection 2 of section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Order shall be varied as follows :—

- (A) A representation as to prices and methods of charge under that subsection may be made by twenty consumers as well as by the local authority or the Undertakers ; and
- (B) Five years shall be substituted for seven years in that subsection both as respects the time after which the first alteration of prices and methods of charge may be made and as respects the period after which subsequent alterations may be made.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds. Deposit.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order. Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The parish of Cheam in the rural district of Epsom as constituted at the commencement of this Order.

[Ch. clxxix.] *Electric-Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

Epsom.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Peaches Close Tate Road Frederick Road Landseer Road Bridgefield Road Hemmingford Road Mulgrave Road Grange Road York Road Worcester Road Cornwall Road Burdon Road Jubilee Road Queen's Road Forest Road Avenue Road Nursery Road Hillside Road Mount Place Grove Road.

THIRD SCHEDULE.

FIRST PART.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

York Road Mulgrave Road (from the Sutton Urban District boundary to York Road) Worcester Road (from the Sutton Urban District boundary to York Road) Grange Road (from the Sutton Urban District boundary to York Road).

SECOND PART.

Street throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains after the expiration of Two Years after the commencement of this Order upon being required so to do by the Local Authority.

The road from Sutton to Ewell from the eastern boundary of the parish of Cheam to the junction of High Street Cheam with Pond Hill.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this Schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

A.D. 1904.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

Epsom.

MANSFIELD WOODHOUSE ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mansfield Woodhouse Urban District Council in respect of the Urban District of Mansfield Woodhouse in the County of Nottingham.

Mansfield Woodhouse.

1. This Order may be cited as the Mansfield Woodhouse Electric Lighting Order 1904. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Mansfield Woodhouse Urban District Council. Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule. Power to break up streets &c.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

*Mansfield
Woodhouse.*
Commence-
ment of Order.

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Mansfield Woodhouse as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and Railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :—

Blake Street Cavendish Street Coke Street Charles Street Clipstone Park Road Common Lane Cox's Lane Crow Hill Lane Eakring Road George Street Green Lane Ley Lane Littlewood Lane Manvers Street Meden Lane Northfield Lane Park Avenue Park Street Park Road Pleasley Vale Road Radmanthwaite Lane Rough Lane Sherwood Street Slant Lane Stinting Lane Thoresby Road Vallance Street Warren Farm Lane.

(b) RAILWAYS :—

The level crossings of the Midland Railway at Rough Lane and Crow Hill Lane.

The Mansfield and District Light Railway so far as it lies along any street.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

High Street from Portland Street to Station Street Station Street from High Street to railway station.

FOURTH SCHEDULE.

A.D. 1904.

*Mansfield
Woodhouse.*

MAXIMUM PRICES.

In this Schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

NORTH WORCESTERSHIRE (BROMSGROVE URBAN)
ELECTRIC LIGHTING.

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to the Shropshire and
Worcestershire Electric Power Company in respect of the Urban
District of Bromsgrove in the County of Worcester.*

*North
Worcestershire
(Bromsgrove
Urban).*

1. This Order may be cited as the North Worcestershire (Bromsgrove Urban) Electric Lighting Order 1904. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Shropshire and Worcestershire Electric Power Company incorporated under the Shropshire and Worcestershire Electric Power Act 1903 whose offices are at 54 Parliament Street Westminster. Undertakers.

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

- A.D. 1904.
North
Worcestershire
(Bromsgrove
Urban).
Area of
supply.
4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.
- Compulsory
works.
5. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.
- Maximum
prices.
6. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.
- Deposit.
7. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is three hundred pounds.
- Powers not to
be exercised
unless under-
taking is
transferred to
a registered
company.
- 8.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a limited company registered under the Companies Act 1862 to 1900 and approved by the Board of Trade for the purpose.
- (2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.
- (3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.
- Purchase by
local authority.
- 9.—(1) The local authority may at any time after the expiration of two years after the commencement of this Order upon giving six months' previous notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking (including all lands buildings works materials and plant suitable to and used by the Undertakers for the purposes of the undertaking) upon the terms of the local authority paying to the Undertakers :—
- (A) In the event of a purchase before the expiration of nine years from the commencement of this Order an amount equal to the capital sum reasonably expended on the undertaking with the addition of an amount equal to five pounds per cent. per annum on the sum

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. clxxix.]
(No. 8) Act, 1904.

so expended from the date of such expenditure to the date of purchase but with the deduction from the amount so calculated of the net profits earned by the Undertakers in respect of the undertaking; or

A.D. 1904.

*North
Worcestershire
(Bromsgrove
Urban).*

(B) In the event of a purchase after the expiration of nine but before the expiration of forty-two years from the commencement of this Order the fair market value of the undertaking as a going concern.

(2) Any question arising as to the amount to be paid in the event of purchase under this section shall be determined by arbitration and in the case of a purchase before the expiration of the nine year period if in the opinion of the arbitrator the undertaking has not been maintained in a proper condition of repair the arbitrator may state in his award the sum which he considers is required to place the undertaking in such a condition and that sum shall be deducted from the amount which would otherwise be payable to the Undertakers as the price of the undertaking.

(3) The Board of Trade may determine any question which arises with reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(4) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order or the principal Act shall absolutely cease and determine and shall vest in the local authority.

(5) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

10. In the event of a limited company or the local authority becoming the Undertakers under the special powers given for those purposes respectively by this Order or under section 2 of the Electric Lighting Act 1888 nothing in the provisions contained in the Schedule to the Electric Lighting (Clauses) Act 1899 shall be construed as preventing any such Undertakers from entering into and carrying into effect any contract agreement or arrangement which under the Shropshire and Worcestershire Electric Power Act 1903 may be entered into and carried into effect by the Shropshire and Worcestershire Electric Power Company and any authorised Undertakers.

*Saving of
power to con-
tract &c. with
Shropshire and
Worcestershire
Electric Power
Company.*

11. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

*Commence-
ment of Order.*

[Ch. clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

*North
Worcestershire
(Bromsgrove
Urban).*

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Bromsgrove as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are required to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Worcester Street High Street Hanover Street St. John's Street.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this Schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

SUTTON-IN-ASHFIELD URBAN DISTRICT ELECTRIC LIGHTING. A.D. 1904.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Sutton-in-Ashfield in respect of the Urban District of Sutton-in-Ashfield in the County of Nottingham. *Sutton-in-Ashfield Urban District.*

1. This Order may be cited as the Sutton-in-Ashfield Urban District Electric Lighting Order 1904. *Short title.*

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. *Incorporation of Electric Lighting (Clauses) Act 1899.*

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Sutton-in-Ashfield Urban District Council. *Undertakers.*

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. *Area of supply.*

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule. *Power to break up streets &c.*

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. *Compulsory works.*

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. *Maximum prices.*

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order. *Commencement of Order.*

[Ch: clxxix.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 8) Act, 1904.

A.D. 1904.

*Sutton-in-
Ashfield Urban
District.*

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Sutton-in-Ashfield as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and Railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

STREETS :—

Mount Pleasant Deepdale Street Edward Street Howard Street Alfred Street John Street Morley Street Barnes Street North Street Park Street Redcliffe Street Dalestorth Street Pelham Street East Short Street Lime Street East Street Herne Street Walton Street St. Michael Street Heathcote Street Potter Street Beighton Street Phoenix Street Briggs Street Bishop Street York Street new street (not named) midway between York Street and Langford Street Langford Street Portland Street Little John Street Robin Hood Street Clumber Road Clipstone Avenue Silk Street Tudor Street Stuart Street Douglas Road Regent Street Oxford Street Pelham Street West George Street Ashfield Road Ashby Street Bradgate Street Marlborough Street Charnwood Street Garfield Street Cromwell Street the road over the bridge across the Midland Railway in Oddicroft Lane and the roads over the bridges across the Great Northern Railway in Outram Street Stoneyford Road Mansfield Road and Station Road and the respective approaches to such roads.

RAILWAYS :—

Midland Railway.—

The level crossings at Blackmires Forest and Sutton Junction.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Outram Street Mansfield Road from the "New Cross Hotel" to its intersection with Eastfield Side Road Eastfield Side Road from its intersection

with Mansfield Road to the "Masons Arms" Forest Street from its intersection with Outram Street to its intersection with Station Road Station Road from its intersection with Forest Street to its intersection with Forest Lane High Pavement from its intersection with Forest Street to its intersection with Mill Street Kirkby Road from its intersection with Stuart Street to its intersection with King Street King Street Market Place Low Street Portland Square.

A.D. 1904

Sutton-in-Ashfield Urban District.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this Schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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